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April 9, 2026

ENGROSSED HOUSE
BILL NO. 3501

By: Duel of the House

and

Hines of the Senate

An Act relating to alcoholic beverages; requiring the Alcoholic Beverage Laws Enforcement (ABLE) Commission to issue multiple licenses for manufacturing beverages on the same premises to certain license holders; providing requirements for acquiring multiple licenses; requiring a license holder operating under an alternating proprietorship or premises arrangement to abide by the Oklahoma Alcoholic Beverage Control Act; directing the ABLE Commission to promulgate rules to authorize alternating proprietorship or premises; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-165 of Title 37A, unless there is created a duplication in numbering, reads as follows:

A. The Alcoholic Beverage Laws Enforcement (ABLE) Commission shall issue multiple licenses for manufacturing beverages on the same premises if the applicant is in good standing with the ABLE Commission and the Oklahoma Tax Commission pursuant to the Oklahoma Alcoholic Beverage Control Act including, but not limited to, small

1 brewer license, charitable collaboration brewer license, distiller
2 license, winemaker license, rectifier license, and small farm winery
3 license and manufacturer's license. Nothing in this section shall
4 be construed to apply to the issuance of distribution or wholesale
5 licensee.

6 B. Applicants for an additional license must obtain all
7 necessary federal permits and approvals from the Alcohol and Tobacco
8 Tax and Trade Bureau (TTB) for an alternating proprietorship or
9 premises arrangement and the applicant must be in good standing with
10 the TTB. An applicant shall notify the ABLE Commission of its
11 intention to operate an alternating proprietorship or premises when
12 applying for the second and all subsequent licenses for a single
13 premises.

14 C. Any license holder operating under an alternating
15 proprietorship or premises arrangement shall abide by the portions
16 of the Oklahoma Alcoholic Beverage Control Act that are relevant to
17 the license under which they are producing the corresponding
18 beverage governed by the license.

19 D. The ABLE Commission shall promulgate rules, pursuant to the
20 Administrative Procedures Act, to authorize alternating
21 proprietorship or premises arrangements.

22 SECTION 2. This act shall become effective November 1, 2026.

23 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
24 April 9, 2026 - DO PASS